

		fees for enforcing a prior court order. Plaintiff included the stricken language in the FAC, there was no new analysis or adjudication needed. Thus, this Motion is denied. Moving Defendants are ordered to serve notice.
54	<i>Off calendar</i>	
55	<i>Neach vs. Pacheco</i>	The motion by Plaintiff/Cross-Defendant Brian Neach (“Neach”) for an order granting summary judgment against the Cross-Complaint filed by Cross-Complainant Rodric Anthony Pacheco (“Pacheco”) is DENIED. Neach’s alternative motion for summary adjudication of four issues is also DENIED. As an initial matter, the Court notes Neach did not identify each issue for summary adjudication in his Separate Statement. (Neach’s Separate Statement, ROA No. 223.) “If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Cal. Rules of Ct., Rule 3.1350(b).) Neach’s notice states Neach is seeking summary adjudication on each of Pacheco’s four causes of action on the ground that they are each barred by the applicable statute of limitations. (Notice, 1:9-19.) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion. (Cal. Rules of Ct., Rule 3.1350(d)(1)(B).)

	Neach’s Separate Statement does not identify any issues for summary adjudication. (See, Separate Statement, ROA No. 223.) The Court has discretion to deny a motion for summary judgment when the moving party fails to comply with the separate statement requirement. (Truong v. Glasser (2009) 181 Cal.App.4th 102, 118 [“the court’s power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary, not mandatory.”].) “The separate statement is not merely a technical requirement, it is an indispensable part of the summary judgment or adjudication process. ‘Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for ... summary judgment to determine quickly and efficiently whether material facts are disputed.’ (United Community Church v. Garcin (1991) 231 Cal.App.3d 327, 335 [282 Cal.Rptr. 368].)” (Kojababian v. Genuine Home Loans, Inc. (2009) 174 Cal.App.4th 408, 415-416, citing Whitehead v. Habig (2008) 163 Cal.App.4th 896, 902.) The statute governing the format of summary judgment moving papers is permissive, not mandatory. (Brown v. El Dorado Union High School Dist. (2022) 76 Cal.App.5th 1003, 1019.) Facts stated elsewhere, other than in the separate statement, need not be considered by the court. (Id., citing Fleet v. CBS, Inc. (1996) 50 Cal.App.4th 1911, 1916, fn. 3.) Pacheco did not oppose Neach’s alternative motion for summary adjudication on this ground. The Court exercises its discretion to consider the
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merits of Neach’s motion for summary adjudication despite this procedural deficiency.

General legal authority

In both summary judgment and summary adjudication proceedings, the pleadings determine the scope of the relevant issues. (Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co. (2018) 24 Cal.App.5th 153, 169.) The standard governing motions for summary judgment and summary adjudication is settled. “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (Ibid.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (Id. at p. 851.) “A court identifies the issues framed by the pleadings, determines whether the moving party’s showing has established facts which negate the opponent’s claim and justify a judgment in the moving party’s favor, and if the summary judgment motion is meritorious on its face, the court will look to whether the opposition demonstrates there are triable, material factual issues.” (Clark v. Baxter Healthcare Corp. (2000) 83 Cal.App.4th 1048, 1054.) The opposing party must show by reference to specific facts the existence of a triable issue as to that cause of action. (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 850.)

“A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims